

TAB 13



Board of Education Report

File #: Rep-303-25/26, **Version:** 1
In Control: Medical Director Office

Agenda Date: 4/21/2026

Update to Delegation of Authority to Negotiate and Execute Nonpublic Agency Master Contracts for Special Education Health and Nursing Services to Increase Aggregate Amount

Division of Special Education and Medical Services Division

Brief Description:

(Update to Delegation of Authority to Negotiate and Execute Nonpublic Agency Master Contracts for Special Education Health and Nursing Services to Increase Aggregate Amount) Recommends approval to update the delegation of authority to negotiate and execute NPA master contracts for Health and Nursing Services with California Department of Education (CDE)-certified Nonpublic Agencies to increase the aggregate amount for the 2025-26 and 2026-27 school years to \$12 million. This aggregate amount will be utilized for health and nursing services as well as for health and special education services.

Action Proposed:

Approval to increase the aggregate amount, for the remainder of the 2025-2026 school year and the 2026-2027 school year only, for NPA master contracts that may be negotiated and executed under delegated authority for Special Education Health and Nursing Services to \$12 million, an \$8 million increase for the 2025-26 school year, and a \$7 million increase for the 2026-27 school year.

Background:

In May 2025, the Board of Education (Board) adopted Board Report No. 331-24/25 which delegated authority to the Superintendent and/or his designee(s) to negotiate, execute, authorize payments, amend, exercise options, and terminate and take any other actions necessary, for the administration of: Master Contracts for Special Education Supports and Services with CDE-certified (non-public schools) NPS/As and Master Contracts for Special Education Health and Nursing Services with CDE-certified NPA's in the not-to-exceed aggregate amount of \$248 million for the 2025-26 school year, and not-to-exceed \$255 million each specific year thereafter. In the 2025-26 school year, the total authorized aggregate amount included \$244 million for the Special Education Supports and Services and \$4 million for Special Education Health and Nursing Services. The total authorized aggregate for each specific year thereafter is \$250 million for the Special Education Supports and Services and \$5 million for Special Education Health and Nursing Services. The delegation also required staff to return to the Board for ratification of the master contracts after rates had been negotiated or ordered by Los Angeles County Office of Education (LACOE) as delegated by the California Department of Education (CDE).

Recent changes to the law have required the District to increase its use of contracted services for special education health and nursing services. Effective October 1, 2025, a regulation adopted by the Respiratory Care Board (RCB) of California defined respiratory procedures such as suctioning as tasks requiring a nursing assessment and limited the authorization of persons legally qualified to perform suctioning. This regulation was introduced by the RCB without prior notification to school districts and other agencies. Effective January 1, 2026, schools were granted a limited exemption for licensed vocational nurses to perform suctioning services.

Due to lack of notice from the RCB, the District was unable to plan for or anticipate the resulting increase in costs. The regulation requires Registered Nurses (RNs) to perform all specified respiratory care services. Previously, Licensed Vocational Nurses (LVNs) and Health Care Assistants (HCAs) performed these procedures. As a result of the new regulation, the District has had to increase the number of contracted non-public agency RNs to provide care to students with respiratory care needs to remain in compliance with the new regulation. These required services necessitate an increase in the previous authorized amount for NPA master contracts for, at minimum, the 2025-26 and 2026-27 school years. An increase is being requested for the remainder of this school year and next school year while staff work on resolutions to address the impact of the new regulation, including possible legislative solutions.

The Division of Special Education and Medical Services Division prepares periodic reports for contract actions necessary for the provision of special education and related services in accordance with Board delegated authority to the Superintendent.

The Individuals with Disabilities Education Act (“IDEA”) requires that the District provide qualified students with disabilities with special education and related services. The District is required to maintain a continuum of program options, including NPAs, health, and nursing services to meet the needs of its special education students. (Ed. Code, §§ 56360, 56361, 56365.)

Expected Outcomes:

Approval of these items will allow the Division of Special Education and Medical Services Division to continue the provision of special education health and nursing supports and services provided through these contracts to serve eligible students with disabilities and ensure compliance with IDEA and state law.

Board Options and Consequences:

A “YES” vote allows continuance of NPA services to qualified students with special education health and nursing services needs.

Based on current demand, staff expects the existing authorized aggregate contract amount for the 2025-26 school year will be fully utilized no later than the end of April 2026.

If the Board does not authorize an increase, a “NO” vote will result in difficulties in allocating resources. Postponement of actions presented for ratification in Attachment “A” will delay contract award or delivery dates.

Policy Implications:

This action does not change District policy and conforms to Board action on May 13, 2025 (Board Report No. 331-24/25).

Budget Impact:

In 2025, the Board approved delegated authority to the Division of Special Education and the Medical Services Division for a not-to-exceed aggregate amount of \$4 million for health and nursing services for the 2025-2026 school year. The Board also approved a not-to-exceed aggregate amount of \$5 million for health and nursing services for the 2026-2027 school year. For the 2025-2026 school year, the Division of Special Education and the Medical Services Division will exceed the previously Board-approved amount of \$4 million and are proposing the Board authorize an \$8 million increase in the aggregate authority, resulting in an updated not-to-exceed aggregate total of \$12 million. In addition, the Divisions are proposing a \$7 million increase in the

aggregate authority for the 2026-2027 school year, resulting in an updated not-to-exceed aggregate total of \$12 million. This budget will be funded by a combination of state and federal funds.

Student Impact:

These contracts support the provision of special education and related services required by federal and state special education laws.

Equity Impact:

Component	Score	Score Rationale
Recognition	3	The award of the NPA master contracts supports the District's efforts to provide mandated special education and related services and programs for students with disabilities pursuant to their Individualized Education Plan (IEP). The District is required to maintain a continuum of program options, including health and nursing services, to meet the needs of individuals with exceptional needs for special education as required by the IDEA.
Resource Prioritization	3	The NPA contracts make services available to qualified students with disabilities, to be provided through master contracts with California Department of Education certified nonpublic schools and agencies.
Results	3	The NPA contracts ensure that the Medical Services Division has the required continuum of program options available to meet the needs of individuals with exceptional needs for special education and health and nursing services as required by the IDEA.
TOTAL	9	

Issues and Analysis:

In May 2025, staff expected to negotiate and execute master contracts for the 2025-26 school year with at least two NPAs (Ro Health and RCM Healthcare Services) for the provision of health and nursing services for students with disabilities pursuant to their IEP, with additional contractors added to the final list as necessary. Staff expects to return to the Board for ratification of the master contracts later this school year after rates have been either negotiated or ordered by LACOE as delegated by the CDE.

Attachments:

None

Link Material:

Ratification of Contracts Awarded Under Delegated Authority previously adopted Board Report referenced in the Policy Implications section adopted May 13, 2025: Board Report No. 331-24/25 <<https://drive.google.com/file/d/1bWM7fLhVuole7b4Shl6TgvT6ZR53w1U8/view?usp=sharing>>

Previously adopted Board report referenced under background and policy implication sections:

- Adopted on May 13, 2025 [Board Report No. 331-24/25 <https://drive.google.com/file/d/107-W3onQyFRIfbk8dt94S7xvocp01bIP/view?usp=drive_link>](https://drive.google.com/file/d/107-W3onQyFRIfbk8dt94S7xvocp01bIP/view?usp=drive_link)

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Submitted:
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